

House File 984

H-1262

1 Amend House File 984 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <DIVISION I

5 SERVICES AND SUPPORT FOR CHILDREN AND YOUTH

6 Section 1. Section 125.13, subsection 2, Code 2025, is
7 amended by adding the following new paragraph:

8 NEW PARAGRAPH. *k.* A psychiatric medical institution for
9 children licensed under chapter 135H, unless the psychiatric
10 medical institution for children provides substance use
11 disorder services.

12 Sec. 2. Section 135H.1, Code 2025, is amended to read as
13 follows:

14 **135H.1 Definitions.**

15 As used in [this chapter](#), unless the context otherwise
16 requires:

17 1. "Approved qualifying organization" means any of the
18 following:

19 a. The joint commission.

20 b. The commission on accreditation of rehabilitation
21 facilities.

22 c. The council on accreditation.

23 d. A nationally recognized accrediting organization with
24 standards comparable to the entities listed in paragraphs "a"
25 through "c" that are acceptable under federal regulations.

26 e. An entity specified by rule adopted by the department in
27 consultation with the department of health and human services.

28 ~~1-~~ 2. "Department" means the department of inspections,
29 appeals, and licensing.

30 ~~2-~~ 3. "Direction" means authoritative policy or procedural
31 guidance for the accomplishment of a function or an activity.

32 ~~3-~~ 4. "Licensee" means the holder of a license issued to
33 operate a psychiatric medical institution for children.

34 ~~4-~~ 5. "Medical care plan" means a plan of care and services
35 designed to eliminate the need for inpatient care by improving

1 the condition of a ~~child~~ youth. Services must be based upon a
2 diagnostic evaluation, which includes ~~an examination~~ a physical
3 assessment and behavioral health evaluation of the medical,
4 psychological, social, behavioral, and developmental aspects
5 of the ~~child's~~ youth's situation, reflecting the need for
6 inpatient care.

7 6. "Mental health disorder" means any of the following:

8 a. A mental disorder as defined by the most recent version
9 of the diagnostic and statistical manual of mental disorders
10 published by the American psychiatric association.

11 b. A mental disorder included in the mental, behavioral, or
12 neurodevelopmental disorders chapter in the most recent version
13 of the international classification of diseases published by
14 the world health organization.

15 ~~5.~~ 7. "Mental health professional" means an individual who
16 has all of the following qualifications:

17 a. The individual holds at least a master's degree in a
18 mental health field, including but not limited to, psychology,
19 counseling and guidance, nursing, and or social work, or the
20 individual is a physician.

21 b. The individual holds a current Iowa license if practicing
22 in a field covered by that requires an Iowa licensure law
23 license.

24 c. The individual has at least two years of post-degree
25 clinical experience, supervised by another mental health
26 professional, in assessing mental health needs and problems and
27 in providing appropriate mental health services.

28 ~~6.~~ 8. "Nursing care" means services which are provided
29 under the direction of a physician or registered nurse.

30 ~~7.~~ 9. "Physician" means a person licensed under chapter
31 148.

32 10. "Protective locked environment" means a setting that
33 prevents egress from a building or grounds as a protective
34 measure to ensure safety and security.

35 ~~8.~~ 11. "Psychiatric medical institution for children" or

HF 984.1668 (2) 91

(amending this HF 984 to CONFORM to SF 474)

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2/33

1 *"psychiatric institution"* means an institution providing more
2 than twenty-four hours of continuous care involving long-term
3 psychiatric services to three or more ~~children~~ youth in
4 residence for expected periods of fourteen or more days for an
5 assessment, evaluation, and diagnosis ~~and evaluation~~ or for
6 expected periods of ninety days or more for treatment.

7 ~~9.~~ 12. *"Psychiatric services"* means services provided under
8 the direction of a physician which address mental, emotional,
9 medical, or behavioral problems.

10 13. *"Record check evaluation system"* means the same as
11 defined in section 135C.1.

12 ~~10.~~ 14. *"Rehabilitative services"* means services to
13 encourage and assist restoration of a resident's optimum mental
14 and physical capabilities.

15 ~~11.~~ 15. *"Resident"* means a ~~person who is less than~~
16 ~~twenty-one years of age and~~ youth who has been admitted by a
17 ~~physician~~ to a psychiatric medical institution for children.

18 16. *"Serious emotional disturbance"* means a diagnosable
19 mental, behavioral, or emotional disorder that meets the
20 diagnostic criteria specified in the most current diagnostic
21 and statistical manual of mental disorders published by
22 the American psychiatric association. *"Serious emotional*
23 *disturbance"* does not include a substance use disorder or
24 developmental disorder unless such disorder co-occurs with a
25 diagnosable mental, behavioral, or emotional disorder.

26 17. *"Substance use disorder"* means the same as defined in
27 section 125.2.

28 ~~12.~~ 18. *"Supervision"* means direct oversight and inspection
29 of ~~the~~ an act of ~~accomplishing~~ that accomplishes a function or
30 activity.

31 19. *"Youth"* means a person who is less than twenty-one years
32 of age.

33 Sec. 3. Section 135H.3, Code 2025, is amended to read as
34 follows:

35 **135H.3 Nature of care.**

1 1. a. A psychiatric medical institution for children
2 shall provide shelter, food, supervision, care, assessment,
3 evaluation, diagnosis, treatment, counseling, rehabilitative
4 services, and related professional-directed services to
5 youth who have a serious emotional disturbance, a substance
6 use disorder, or both, with the intention of reducing or
7 ameliorating the disorder, the symptoms of the disorder, or the
8 effects of the disorder.

9 b. A psychiatric medical institution for children shall
10 utilize a team of professionals to direct an organized program
11 of diagnostic services, psychiatric services, nursing care,
12 and rehabilitative services to meet the needs of residents
13 in accordance with a medical care plan developed for each
14 resident. The membership of the team of professionals
15 may include but is not limited to an advanced registered
16 nurse practitioner or a physician assistant. Social and
17 rehabilitative services shall be provided under the direction
18 of a qualified mental health professional.

19 2. If a ~~child~~ youth is diagnosed with a biologically
20 based mental illness as defined in [section 514C.22](#) and meets
21 the medical assistance program criteria for admission to a
22 psychiatric medical institution for children, the ~~child~~ youth
23 shall be deemed to meet the acuity criteria for medically
24 necessary inpatient benefits under a group policy, contract, or
25 plan providing for third-party payment or prepayment of health,
26 medical, and surgical coverage benefits issued by a carrier, as
27 defined in [section 513B.2](#), that is subject to [section 514C.22](#).
28 Such medically necessary benefits shall not be excluded or
29 denied as care that is substantially custodial in nature under
30 section 514C.22, subsection 8, paragraph "b".

31 Sec. 4. Section 135H.4, Code 2025, is amended to read as
32 follows:

33 **135H.4 Licensure.**

34 1. A person shall not establish, operate, or maintain a
35 psychiatric medical institution for children unless the person

1 ~~obtains a license for the institution under this chapter and~~
2 ~~either holds a license under section 237.3, subsection 2,~~
3 ~~paragraph "a", as a comprehensive residential facility for~~
4 ~~children or holds a license under section 125.13, if the~~
5 ~~facility provides substance use disorder treatment under~~
6 ~~chapter 237, and holds a license under this chapter.~~

7 2. In addition to the requirements under subsection 1, a
8 person shall not provide substance use disorder services at a
9 psychiatric medical institution for children unless the person
10 holds a license under section 125.13. The department of health
11 and human services shall adopt rules pursuant to chapter 17A
12 to create an expedited process for a person to simultaneously
13 obtain a license under section 125.13 and a license as a
14 comprehensive residential facility for children under chapter
15 237.

16 Sec. 5. Section 135H.5, Code 2025, is amended to read as
17 follows:

18 **135H.5 Application for license — initial application and**
19 **annual fees.**

20 1. An application for a license under ~~this chapter~~ shall
21 be submitted on a form ~~requesting information~~ required by
22 the department, ~~which.~~ The application may include require
23 affirmative evidence of the applicant's ability to comply with
24 the rules for standards adopted pursuant to this chapter. The
25 application shall require the applicant to specify whether the
26 applicant intends to provide services for serious emotional
27 disturbances, substance use disorders, or both.

28 2. An application for a license shall be accompanied by the
29 required license fee which shall be credited to the general
30 fund of the state. The initial application fee and the annual
31 license fee is twenty-five dollars.

32 Sec. 6. Section 135H.6, subsections 1, 4, and 5, Code 2025,
33 are amended to read as follows:

34 1. The department shall issue a license to an applicant
35 under ~~this chapter~~ if all the following conditions exist:

1 a. The department has ascertained that the applicant's
2 medical facilities and staff are adequate to provide the care
3 and services required of a psychiatric medical institution for
4 children.

5 b. The proposed psychiatric institution is accredited
6 by the ~~joint commission on the accreditation of health~~
7 ~~care organizations, the commission on accreditation of~~
8 ~~rehabilitation facilities, the council on accreditation of~~
9 ~~services for families and children, or by any other recognized~~
10 ~~accrediting organization with comparable standards acceptable~~
11 ~~under federal regulation~~ an approved qualifying organization.

12 c. The applicant complies with applicable state rules
13 and standards for a psychiatric institution adopted by the
14 department in accordance with federal requirements under 42
15 C.F.R. §441.150 – 441.156.

16 d. The department of health and human services has submitted
17 written approval of the application based on the department
18 of health and human services' determination of need. The
19 department of health and human services shall identify the
20 location and number of ~~children~~ youth in the state who require
21 the services of a psychiatric medical institution for children.
22 Approval of an application shall be based upon the location
23 of the proposed psychiatric institution relative to the need
24 for services identified by the department of health and human
25 services and an analysis of the applicant's ability to provide
26 services and support consistent with requirements under chapter
27 232, ~~particularly regarding~~ specifically community-based
28 treatment. If the proposed psychiatric institution is not
29 freestanding from a facility licensed under [chapter 135B](#) or
30 135C, approval under this paragraph shall not be given unless
31 the department of health and human services certifies that
32 the proposed psychiatric institution is capable of providing
33 a resident with a living environment similar to the living
34 environment provided by a licensee which is freestanding from a
35 facility licensed under [chapter 135B](#) or [135C](#).

HF 984.1668 (2) 91

(amending this HF 984 to CONFORM to SF 474)

1 ~~e. The proposed psychiatric institution is under the~~
2 ~~direction of an agency which has operated a facility licensed~~
3 ~~under section 237.3, subsection 2, paragraph "a", as a~~
4 ~~comprehensive residential facility for children for three years~~
5 ~~or of an agency which has operated a facility for three years~~
6 ~~providing psychiatric services exclusively to children or~~
7 ~~adolescents and the facility meets or exceeds requirements for~~
8 ~~licensure under section 237.3, subsection 2, paragraph "a", as a~~
9 ~~comprehensive residential facility for children.~~

10 ~~f. e.~~ If a child youth has an a serious emotional,
11 ~~behavioral, or mental health disorder disturbance~~, the
12 psychiatric institution does not require ~~court~~ any of the
13 following as a condition for the youth to obtain treatment:

14 (1) Court proceedings to be initiated or that a child's.

15 (2) For the youth's parent, guardian, or custodian must
16 to terminate parental rights over, or transfer legal custody
17 of, the child ~~for the purposes of obtaining treatment from the~~
18 ~~psychiatric institution for the child youth.~~

19 (3) Relinquishment of a child's the youth's custody shall
20 not be a condition of the child receiving services.

21 4. The department of health and human services may give
22 ~~approval to~~ approve a conversion of beds approved under
23 ~~subsection 2, to if the~~ beds which are specialized to provide
24 substance use disorder treatment. However, the total number of
25 beds approved under subsection 2 and this subsection shall not
26 exceed four hundred thirty, unless approved for good cause by
27 the director pursuant to subsection 2. ~~Beds~~ The limitations
28 on the number of beds under this section shall not apply to
29 beds for children youth who do not reside in this state and
30 whose service costs are not paid by public funds in this state
31 ~~are not subject to the limitations on the number of beds~~
32 ~~requirements otherwise applicable under this section.~~

33 5. ~~A psychiatric institution licensed prior to July 1, 1999,~~
34 ~~may exceed the number of beds authorized under subsection 2~~
35 ~~if the excess beds are used to provide services funded from~~

1 ~~a source other than the medical assistance program under~~
2 ~~chapter 249A. Notwithstanding subsection 1, paragraph "d", and~~
3 ~~subsection 2, the provision of services using those excess beds~~
4 ~~does not require a review by the department of health and human~~
5 ~~services.~~

6 Sec. 7. Section 135H.7, subsection 2, paragraph a, Code
7 2025, is amended to read as follows:

8 a. If a person who has been convicted of a crime or has a
9 record of founded child abuse is being considered for licensure
10 under this chapter, ~~or~~ for employment with a psychiatric
11 institution involving direct responsibility for a child youth
12 or with access to a child youth when the child youth is alone,
13 ~~by a licensed psychiatric institution, or if a person will~~
14 reside residence in a facility utilized by a licensee, ~~and if~~
15 ~~the person has been convicted of a crime or has a record of~~
16 ~~founded child abuse,~~ the record check evaluation system and
17 the licensee for an employee of the licensee considering the
18 person for employment shall perform an evaluation to determine
19 whether the crime or founded child abuse warrants prohibition
20 of licensure, employment, or residence in the facility utilized
21 by a licensee. The record check evaluation system ~~of the~~
22 ~~department of health and human services~~ shall conduct criminal
23 and child abuse record checks in this state and may conduct
24 these checks in other states. The record check evaluation
25 shall be performed in accordance with procedures adopted for
26 this purpose by the department of health and human services.

27 Sec. 8. NEW SECTION. 135H.7A **Protective locked environment**
28 **— rules.**

29 The department, in cooperation with the department of health
30 and human services, shall adopt rules pursuant to chapter 17A
31 relating to the application of a protective locked environment
32 in a psychiatric medical institution for children.

33 Sec. 9. Section 135H.10, subsection 2, Code 2025, is amended
34 to read as follows:

35 2. This chapter shall not be construed as ~~prohibiting~~

1 ~~the use of~~ to prohibit funds appropriated for foster care ~~to~~
2 from being used to provide payment to a psychiatric medical
3 institution for children for the financial participation
4 required of a ~~child~~ youth whose foster care placement is in a
5 psychiatric medical institution for children. In accordance
6 with established policies and procedures for foster care, the
7 department of health and human services shall act to recover
8 any such payment for financial participation, apply to be named
9 payee for the ~~child's~~ youth's unearned income, and recommend
10 parental liability for the costs of a court-ordered foster care
11 placement in a psychiatric ~~medical~~ institution.

12 Sec. 10. Section 135H.13, subsection 1, Code 2025, is
13 amended to read as follows:

14 1. The department's final findings and the ~~survey~~ findings
15 of the ~~joint commission on the accreditation of health care~~
16 ~~organizations~~ an approved qualifying organization regarding
17 licensure or program accreditation shall be made available
18 to the public in a readily available form and place. Other
19 information relating to the psychiatric institution is
20 confidential and shall not be made available to the public
21 except in ~~proceedings~~ a proceeding involving licensure, a
22 civil suit involving a resident, or an administrative action
23 involving a resident.

24 Sec. 11. Section 229.13, subsection 1, paragraph c, Code
25 2025, is amended to read as follows:

26 c. (1) If the court orders evaluation and treatment of
27 the respondent on an inpatient basis under this section, the
28 court may order the respondent placed under the care of an
29 appropriate subacute care facility licensed under chapter 135G.

30 (2) If the court orders evaluation and treatment of a minor
31 respondent on an inpatient basis under this section, the court
32 may order the minor respondent placed under the care of an
33 appropriate public hospital.

34 Sec. 12. Section 229.13, subsection 5, Code 2025, is amended
35 to read as follows:

1 5. a. (1) The chief medical officer of the hospital or
2 facility at which the respondent is placed shall report to the
3 court and make a recommendation for disposition of the matter
4 no more than fifteen days after the date the respondent is
5 placed, making a recommendation for disposition of the matter
6 at the hospital or facility. An

7 (2) If the respondent is a minor and is placed under the
8 care of a public hospital pursuant to subsection 1, paragraph
9 "c", subparagraph (2), the chief medical officer of the public
10 hospital shall report to the court and make a recommendation
11 for disposition no later than thirty calendar days after the
12 date the minor respondent is placed under the care of the
13 public hospital.

14 b. A copy of the chief medical officer's report shall be
15 sent to the respondent's attorney.

16 c. (1) Upon request, the court may grant the chief medical
17 officer an extension of time ~~may be granted~~, not to exceed
18 seven days, upon a showing of cause. ~~A copy of the report shall~~
19 ~~be sent to the~~ The respondent's attorney, who may contest the
20 need for an extension of time ~~if one is requested.~~ An

21 (2) The court shall grant an extension of time ~~shall be~~
22 ~~granted upon request~~ unless the request is contested, in which
23 case the court shall make such inquiry as it deems appropriate
24 and may either order the respondent's release from the hospital
25 or facility, or grant an extension of time for psychiatric
26 evaluation.

27 d. If the chief medical officer fails to report to the
28 court within ~~fifteen days after the individual is placed under~~
29 ~~the care of the hospital or facility~~ the time specified in
30 paragraph "a", and an extension of time has not been requested
31 granted, the chief medical officer is guilty of contempt
32 and shall be punished under chapter 665. The court shall
33 order a rehearing on the application to determine whether the
34 respondent should continue to be detained at or placed under
35 the care of the hospital or facility.

1 Sec. 13. Section 229.14, subsection 2, paragraph e, Code
2 2025, is amended to read as follows:

3 e. (1) If the court orders placement and treatment of the
4 a respondent on an inpatient basis under this section, the
5 court may order the respondent placed under the care of an
6 appropriate subacute care facility licensed under chapter 135G.

7 (2) If the court orders placement and treatment of a minor
8 respondent on an inpatient basis under this section, the court
9 may order the minor respondent placed under the care of an
10 appropriate public hospital.

11 Sec. 14. Section 232.2, Code 2025, is amended by adding the
12 following new subsections:

13 NEW SUBSECTION. 3A. "*Behavioral health condition*" means
14 a serious emotional disturbance, a mental health disorder,
15 a substance abuse disorder, life stressors and crises, and
16 stress-related physical symptoms.

17 NEW SUBSECTION. 3B. "*Behavioral health evaluation*" means a
18 process used to assess an individual's behavioral health status
19 and functioning for purposes including but not limited to the
20 diagnosis of a behavioral health condition or to determine the
21 need for treatment or intervention.

22 NEW SUBSECTION. 38A. "*Mental health disorder*" means the
23 same as defined in section 135H.1.

24 NEW SUBSECTION. 48A. "*Physical assessment*" means
25 direct physical touching, viewing, and medically necessary
26 manipulation of any area of a child's body by a physician
27 licensed under chapter 148.

28 NEW SUBSECTION. 58A. "*Serious emotional disturbance*" means
29 the same as defined in section 135H.1.

30 NEW SUBSECTION. 64A. "*Substance use disorder*" means the
31 same as defined in section 125.2.

32 Sec. 15. Section 232.2, subsection 34, Code 2025, is amended
33 to read as follows:

34 34. "*Juvenile court social records*" or "*social records*" means
35 all records, other than official records, made with respect to

1 a child in connection with proceedings over which the court has
2 jurisdiction under this chapter ~~other than official records~~ and
3 includes but is not limited to ~~the~~ records made and compiled
4 by intake officers, predisposition reports, and reports of
5 physical assessments and ~~mental examinations~~ behavioral health
6 evaluations.

7 Sec. 16. Section 232.8, subsection 4, Code 2025, is amended
8 to read as follows:

9 4. In a proceeding concerning a child who is alleged to
10 have committed a second delinquent act or a second violation
11 excluded from the jurisdiction of the juvenile court, the court
12 or the juvenile court shall determine whether there is reason
13 to believe that the child ~~regularly abuses alcohol or other~~
14 ~~controlled substance~~ has a behavioral health condition and may
15 be in need of treatment. If the court so determines, the court
16 shall advise appropriate juvenile authorities and refer such
17 offenders to the juvenile court for disposition pursuant to
18 section 232.52A.

19 Sec. 17. Section 232.49, Code 2025, is amended to read as
20 follows:

21 **232.49 Physical assessments and mental examinations**
22 **behavioral health evaluations — juvenile delinquency.**

23 1. a. Following Any time after the entry of an order
24 of adjudication under section 232.47, the court may, after
25 a hearing ~~which may be simultaneous with the adjudicatory~~
26 ~~hearing~~, order a physical assessment or ~~mental examination~~
27 behavioral health evaluation of a child if ~~it~~ the court finds
28 that ~~an examination~~ a physical assessment or a behavioral
29 health evaluation is necessary to determine the child's
30 physical condition or ~~mental~~ to determine if the child has a
31 behavioral health condition.

32 b. The court may consider chemical dependency as either
33 a physical condition or ~~mental~~ behavioral health condition
34 and may consider a chemical dependency evaluation as either a
35 physical assessment or ~~mental examination~~ behavioral health

1 evaluation. If the examination

2 c. A hearing to order a physical assessment or behavioral
3 health evaluation may be held at the same time as the
4 adjudicatory hearing.

5 2. Unless otherwise ordered by the court, if a physical
6 assessment or behavioral health evaluation indicates the child
7 has behaved in a manner that threatened the safety of another
8 person, has committed a violent act causing bodily injury to
9 another person, or has been a victim or perpetrator of sexual
10 abuse, unless otherwise ordered by the court, the child's
11 parent, guardian, or foster parent, or other person with
12 custody of the child shall be provided with that information.

13 2. 3. a. When possible an examination, a physical
14 assessment or behavioral health evaluation shall be conducted
15 on an outpatient basis, but. However, if deemed necessary by
16 the court, the court may, if it deems necessary commit order
17 the child to a suitable hospital, facility, or institution for
18 the purpose of examination an inpatient physical assessment or
19 an inpatient behavioral health evaluation.

20 b. Commitment for examination An inpatient physical
21 assessment or an inpatient behavioral health evaluation shall
22 not exceed thirty days and the civil commitment provisions of
23 chapter 229 shall not apply.

24 3. 4. a. At any Any time after the filing of a delinquency
25 petition, the court may order a physical assessment or mental
26 examination behavioral health evaluation of the child if all of
27 the following circumstances apply:

28 (1) The court finds such examination a physical assessment
29 or a behavioral health evaluation to be in the best interest
30 of the child; and.

31 (2) The parent, guardian, or custodian and the child's
32 counsel agree to the physical assessment or behavioral health
33 evaluation.

34 b. (1) An examination A physical assessment or behavioral
35 health evaluation shall be conducted on an outpatient basis

1 unless the court, the child's counsel, and the child's
2 parent, guardian, or custodian agree that ~~it is necessary~~ the
3 child should be committed ordered to a suitable hospital,
4 facility, or institution for the purpose of ~~examination~~ an
5 inpatient physical assessment or an inpatient behavioral health
6 evaluation. ~~Commitment for examination~~

7 (2) An inpatient physical assessment or inpatient
8 behavioral health evaluation shall not exceed thirty days and
9 ~~the civil commitment provisions of chapter 229~~ shall not apply.

10 Sec. 18. Section 232.52A, subsection 1, Code 2025, is
11 amended to read as follows:

12 1. In addition to any other order of the juvenile court,
13 ~~a person under age eighteen,~~ child who may be in need of
14 treatment, as determined under section 232.8, may be ordered
15 to participate in ~~an alcohol or controlled substance education~~
16 ~~or a physical assessment or behavioral health~~ evaluation
17 program approved by the juvenile court. ~~If recommended after~~
18 ~~evaluation, the~~ The court may also order the ~~person~~ child to
19 participate in a treatment program approved by the court if the
20 treatment program is recommended after the child's physical
21 assessment or behavioral health evaluation. The juvenile court
22 may also require the custodial parent or parents, or other
23 ~~legal~~ guardian, to participate in an educational program with
24 ~~the person under age eighteen~~ child if the court determines
25 that such participation is in the best interests of the ~~person~~
26 ~~under age eighteen~~ child.

27 Sec. 19. Section 232.68, subsection 3, unnumbered paragraph
28 1, Code 2025, is amended to read as follows:

29 "*Confidential access to a child*" means access to a child,
30 ~~during an assessment of an alleged act of child abuse,~~ who is
31 alleged to be the victim of ~~the child abuse,~~ during a child
32 abuse assessment. The access may be accomplished by interview,
33 observation, or ~~examination~~ physical assessment of the child.
34 As used in this subsection and this part:

35 Sec. 20. Section 232.68, subsection 3, paragraph c, Code

1 2025, is amended by striking the paragraph.

2 Sec. 21. Section 232.69, subsection 3, paragraph b, Code
3 2025, is amended to read as follows:

4 b. A person required to make a report under subsection 1,
5 other than a physician whose professional practice does not
6 regularly involve providing primary health care to children,
7 shall complete the core training curriculum relating to
8 the identification and reporting of child abuse within six
9 months of initial employment or self-employment involving
10 ~~the examination~~ physical assessments or behavioral health
11 evaluations, or attending, counseling, or treatment of treating
12 children on a regular basis. Within one month of initial
13 employment or self-employment, the person shall obtain a
14 statement of the abuse reporting requirements from the person's
15 employer or, if self-employed, from the department. The person
16 shall complete the core training curriculum relating to the
17 identification and reporting of child abuse every three years.

18 Sec. 22. Section 232.71B, subsection 10, Code 2025, is
19 amended to read as follows:

20 10. *Physical examination assessment.* If the department
21 refers a child to a physician or physician assistant for a
22 ~~physical examination assessment~~, the department shall contact
23 the physician or physician assistant regarding the ~~examination~~
24 physical assessment within twenty-four hours of making the
25 referral. If the physician or physician assistant who performs
26 the ~~examination upon referral by the department~~ physical
27 assessment reasonably believes the child has been abused, the
28 physician or physician assistant shall report to the department
29 within twenty-four hours of performing the ~~examination~~ physical
30 assessment.

31 Sec. 23. Section 232.77, subsection 1, Code 2025, is amended
32 to read as follows:

33 1. a. A person who is required to report suspected
34 child abuse may take or perform, or may cause to be taken or
35 performed, at public expense, photographs, X rays, ~~or other~~

1 physical ~~examinations~~ assessments, or other tests of a child
2 which would provide medical indication of allegations arising
3 from an assessment.

4 b. A health practitioner may, if medically indicated,
5 cause to be performed a radiological examination, physical
6 ~~examination~~ assessment, or other ~~medical tests~~ test of the
7 child.

8 c. A person who takes any photographs or X rays or
9 performs any physical ~~examinations~~ assessments or other tests
10 pursuant to this section shall notify the department that the
11 photographs or X rays have been taken or the ~~examinations~~
12 physical assessments or other tests have been performed. ~~The~~
13 ~~person who made notification, and~~ shall retain the photographs,
14 ~~or~~ X rays, or examination physical assessment or other test
15 findings for a reasonable time following the notification.

16 d. Whenever the person is required to report under section
17 232.69, in that person's capacity as a member of the staff of
18 a medical or other private or public institution, agency or
19 facility, that person shall immediately notify the person in
20 charge of the institution, agency, or facility or that person's
21 designated delegate of the need for photographs, ~~or~~ X rays ~~or~~
22 ~~examinations~~, physical assessments, or other tests.

23 Sec. 24. Section 232.78, subsection 1, paragraph a, Code
24 2025, is amended to read as follows:

25 a. Any of the following circumstances exist:

26 (1) The person responsible for the care of the child
27 consents to the removal.

28 (2) The person responsible for the care of the child is
29 absent, ~~or~~.

30 (3) The person responsible for the care of the child, though
31 present, was asked and refused to consent to the removal of the
32 child and was informed of an intent to apply for an order under
33 this section, ~~or there.~~

34 (4) There is reasonable cause to believe that a request for
35 consent would further endanger the child, ~~or there.~~

1 (5) There is reasonable cause to believe that a request for
2 consent will cause the ~~parent, guardian, or legal custodian~~
3 person responsible for the care of the child to take flight
4 with the child.

5 Sec. 25. Section 232.78, subsection 1, paragraph c,
6 subparagraph (1), Code 2025, is amended to read as follows:

7 (1) The refusal or failure of the person responsible for
8 the care of the child to comply with the request of a peace
9 officer, juvenile court officer, or child protection worker
10 for ~~such~~ the person to obtain and provide to the requester
11 the results of a physical assessment or ~~mental examination~~
12 behavioral health evaluation of the child. The request for a
13 physical ~~examination~~ assessment of the child may specify the
14 performance of a medically relevant test.

15 Sec. 26. Section 232.78, subsection 5, Code 2025, is amended
16 to read as follows:

17 5. The juvenile court, before or after the filing of a
18 petition under this chapter, may enter an ex parte order
19 ~~authorizing a physician or physician assistant or hospital to~~
20 ~~conduct an~~ inpatient or outpatient physical examination or
21 ~~authorizing a physician or physician assistant, a psychologist~~
22 ~~certified under section 154B.7, or a community mental health~~
23 ~~center accredited pursuant to chapter 230A to conduct an~~
24 ~~outpatient mental examination~~ assessment or an inpatient or
25 outpatient behavioral health evaluation of a child if necessary
26 ~~to identify the nature, extent, and cause of injuries to the~~
27 ~~child as required by section 232.71B~~, provided all of the
28 following apply:

29 a. Any of the following circumstances exist:

30 (1) The child's parent, guardian, or custodian consents to
31 the physical assessment or the behavioral health evaluation.

32 (2) The child's parent, guardian, or legal custodian is
33 absent, or.

34 (3) The child's parent, guardian, or custodian, though
35 present, was asked and refused to provide written consent to

1 ~~the examination~~ physical assessment or the behavioral health
2 evaluation.

3 *b.* The juvenile court has entered an ex parte order
4 directing the removal of the child from the child's home or a
5 child care facility under this section.

6 *c.* There is not enough time to file a petition and to hold
7 a hearing as provided in section 232.98.

8 Sec. 27. Section 232.79, subsection 5, Code 2025, is amended
9 to read as follows:

10 5. When there has been an emergency removal or keeping of a
11 child without a court order, a physical examination assessment
12 of the child by a licensed medical practitioner shall be
13 performed within twenty-four hours of such the emergency
14 removal or keeping of a child, unless the child is returned
15 to the child's home within twenty-four hours of the emergency
16 removal or keeping of a child.

17 Sec. 28. Section 232.83, subsection 2, Code 2025, is amended
18 to read as follows:

19 2. Anyone authorized to conduct a preliminary investigation
20 in response to a complaint may apply for, or the court on its
21 own motion may enter, an ex parte order authorizing ~~a physician~~
22 ~~or physician assistant or hospital to conduct an inpatient or~~
23 ~~outpatient physical examination or authorizing a physician or~~
24 ~~physician assistant, a psychologist certified under section~~
25 ~~154B.7, or a community mental health center accredited pursuant~~
26 ~~to [chapter 230A](#) to conduct an outpatient mental examination~~
27 ~~of a child if necessary to identify the nature, extent, and~~
28 ~~causes of any injuries, emotional damage, or other such needs~~
29 ~~of a child as specified in section 232.96A, subsection 3, 5, or~~
30 ~~6, assessment or an inpatient or outpatient behavioral health~~
31 evaluation provided that all of the following apply:

32 *a.* Any of the following circumstances exist:

33 (1) The parent, guardian, or custodian consents to the
34 physical assessment or the behavioral health evaluation.

35 (2) The parent, guardian, or legal custodian is absent, or.

HF 984.1668 (2) 91

(amending this HF 984 to CONFORM to SF 474)

dg/ko

18/33

1 (3) The parent, guardian, or custodian, though present,
2 was asked and refused to authorize the ~~examination~~ physical
3 assessment or the behavioral health evaluation.

4 **b.** There is not enough time to file a petition and hold a
5 hearing under this chapter.

6 **c.** The parent, guardian, or ~~legal~~ custodian has not provided
7 care and treatment related to ~~their~~ the child's alleged
8 victimization.

9 Sec. 29. Section 232.98, Code 2025, is amended to read as
10 follows:

11 **232.98 ~~Physical and mental examinations~~ assessments and**
12 **behavioral health evaluations — child in need of assistance.**

13 1. **a.** Except as provided in section 232.78, subsection 5,
14 a physical assessment or ~~mental examination~~ behavioral health
15 evaluation of ~~the~~ a child may be ordered only after the filing
16 of a petition pursuant to section 232.87, and after a hearing
17 to determine whether ~~an examination~~ a physical assessment
18 or behavioral health evaluation is necessary to determine
19 the child's physical condition or ~~mental~~ if the child has a
20 behavioral health condition.

21 **b.** The court may consider chemical dependency as either
22 a physical or ~~mental~~ behavioral health condition and may
23 consider a chemical dependency evaluation as either a physical
24 assessment or ~~mental examination~~ behavioral health evaluation.

25 ~~a.~~ **c.** The hearing required by this section may be held
26 simultaneously with the adjudicatory hearing.

27 ~~b.~~ **d.** ~~An examination~~ A physical assessment or a behavioral
28 health evaluation ordered prior to the adjudication shall
29 be conducted on an outpatient basis when possible, ~~but.~~
30 However, if deemed necessary by the court, the court may
31 ~~commit~~ order the child to a suitable nonsecure hospital,
32 facility, or institution for the purpose of ~~examination~~ an
33 inpatient physical assessment or an inpatient behavioral health
34 evaluation for a period not to exceed ~~fifteen~~ thirty days if
35 all of the following ~~are found to be present~~ circumstances

1 exist:

2 (1) Probable cause exists to believe that the child is
3 a child in need of assistance pursuant to section 232.96A,
4 subsection 5 or 6.

5 (2) ~~Commitment~~ An inpatient physical assessment or
6 inpatient behavioral health evaluation is necessary to
7 determine whether there is clear and convincing evidence that
8 the child is a child in need of assistance.

9 (3) The child's attorney agrees to ~~the commitment~~ an
10 inpatient physical assessment or inpatient behavioral health
11 evaluation.

12 ~~e. e.~~ An examination A physical assessment or a behavioral
13 health evaluation ordered after the adjudication shall
14 be conducted on an outpatient basis when possible, ~~but.~~
15 However, if deemed necessary by the court, the court may
16 ~~commit~~ order the child to a suitable nonsecure hospital,
17 facility, or institution for the purpose of ~~examination~~ an
18 inpatient physical assessment or an inpatient behavioral health
19 evaluation for a period not to exceed thirty days.

20 ~~d. f.~~ The child's parent, guardian, or custodian shall
21 be included in counseling sessions offered during the child's
22 stay in a hospital, facility, or institution when feasible, and
23 when in the best interests of the child and the child's parent,
24 guardian, or custodian. If separate counseling sessions are
25 conducted for the child and the child's parent, guardian, or
26 custodian, a joint counseling session shall be offered prior
27 to the release of the child from the hospital, facility, or
28 institution. The court shall require that notice be provided
29 to the child's guardian ad litem of the counseling sessions,
30 ~~and of the~~ counseling session participants, ~~and results~~ the
31 outcomes of the counseling sessions.

32 2. Following an adjudication that a child is a child in
33 need of assistance, the court may, after a hearing, order ~~the~~
34 a physical assessment or mental examination behavioral health
35 evaluation of the child's parent, guardian, or custodian if

1 that person's ability to care for the child is at issue.

2 Sec. 30. Section 232.141, subsection 1, Code 2025, is
3 amended to read as follows:

4 1. Except as otherwise provided by law, the court shall
5 inquire into the ability of the child or the child's parent
6 to pay expenses incurred pursuant to subsections 2, 4, and
7 8. After giving the parent a reasonable opportunity to be
8 heard, the court may order the parent to pay all or part of the
9 costs of the child's care, examination physical assessment,
10 behavioral health evaluation, treatment, legal expenses, or
11 other expenses. An order entered under this section does not
12 obligate a parent paying child support under a custody decree,
13 except that part of the monthly support payment may be used to
14 satisfy the obligations imposed by the order entered pursuant
15 to this section. If a parent fails to pay as ordered, without
16 good reason, the court may proceed against the parent for
17 contempt and may inform the county attorney who shall proceed
18 against the parent to collect the unpaid amount. Any payment
19 ordered by the court shall be a judgment against each of the
20 child's parents and a lien as provided in section 624.23. If
21 all or part of the amount that the parents are ordered to pay is
22 subsequently paid by the county or state, the judgment and lien
23 shall thereafter be against each of the parents in favor of the
24 county to the extent of the county's payments and in favor of
25 the state to the extent of the state's payments.

26 Sec. 31. Section 232.141, subsection 4, paragraph b, Code
27 2025, is amended to read as follows:

28 b. Expenses for ~~mental or physical examinations~~ assessments
29 or behavioral health evaluations of a child if ordered by the
30 court.

31 Sec. 32. Section 232.141, subsection 6, Code 2025, is
32 amended to read as follows:

33 6. ~~If a child is given A physical or mental examinations~~
34 assessment, behavioral health evaluation, or any treatment
35 relating to an assessment performed pursuant to section

HF 984.1668 (2) 91

(amending this HF 984 to CONFORM to SF 474)

1 232.71B, shall be paid by the state if physical assessment,
2 behavioral health evaluation, or other treatment was performed
3 with the consent of the child's parent, guardian, or legal
4 custodian and no other provision of law otherwise requires
5 payment for the costs of the examination and treatment, the
6 costs shall be paid by the state. Reimbursement for The
7 department shall reimburse costs of services described in under
8 this subsection is subject to in accordance with subsection 5.

9 Sec. 33. Section 237.1, Code 2025, is amended by adding the
10 following new subsection:

11 NEW SUBSECTION. 8A. "*Protective locked environment*" means a
12 setting that prevents egress from a building or grounds as a
13 protective measure to ensure safety and security.

14 Sec. 34. Section 237.3, Code 2025, is amended by adding the
15 following new subsection:

16 NEW SUBSECTION. 13. The department shall adopt rules
17 pursuant to chapter 17A relating to the application of a
18 protective locked environment to child foster care licensees.

19 Sec. 35. Section 237C.1, Code 2025, is amended by adding the
20 following new subsection:

21 NEW SUBSECTION. 5. "*Protective locked environment*" means a
22 setting that prevents egress from a building or grounds as a
23 protective measure to ensure safety and security.

24 Sec. 36. Section 237C.4, Code 2025, is amended by adding the
25 following new subsection:

26 NEW SUBSECTION. 6A. Rules governing the application of
27 a protective locked environment to a children's residential
28 facility shall be adopted by the department.

29 Sec. 37. DEPARTMENT OF HEALTH AND HUMAN SERVICES —
30 DEPARTMENT OF INSPECTIONS, APPEALS, AND LICENSING —
31 ADMINISTRATIVE RULES.

32 1. The department of health and human services and the
33 department of inspections, appeals, and licensing shall each
34 adopt rules pursuant to chapter 17A to administer this division
35 of this Act. The departments shall coordinate in developing

1 their respective rules to provide continuity for, and maximize
2 utilization of the array of behavioral health services
3 available by, affected individuals.

4 2. a. The department of health and human services and
5 the department of inspections, appeals, and licensing shall
6 review applicable existing rules and shall each adopt rules
7 pursuant to chapter 17A to provide for the following relative
8 to facilities licensed or certified under chapters 135H, 237,
9 and 237C:

10 (1) Consistency to the greatest extent possible regarding
11 the use of restraints and seclusion across these facilities.

12 (2) Adaptation in application of licensing and
13 certification requirements to provide for the unmet residential
14 care needs of affected individuals.

15 b. In reviewing and adopting the rules, the departments
16 shall consider the nature of the services and programming
17 provided by the specific type of facility and applicable
18 federal requirements, including those for psychiatric
19 residential treatment facilities as described in 42 C.F.R.
20 §483.352.

21 3. The department of health and human services shall adopt
22 rules pursuant to chapter 17A relating to the application of
23 a protective locked environment to detention and shelter care
24 as defined in section 232.2. For purposes of this subsection,
25 "protective locked environment" means a setting that prevents
26 egress from a building or grounds as a protective measure to
27 ensure safety and security.

28 Sec. 38. REVIEW OF YOUTH SYSTEMS, SERVICES, AND SUPPORTS.

29 1. a. The department of health and human services shall
30 convene representatives of the department of health and human
31 services, the courts and practitioners involved in civil
32 commitment and juvenile justice proceedings, law enforcement
33 and corrections, hospital systems, service providers,
34 individuals with lived experience and their families, and
35 four members of the general assembly to review the systems

HF 984.1668 (2) 91

(amending this HF 984 to CONFORM to SF 474)

dg/ko

23/33

1 and related services and supports for youth, including but
2 not limited to the civil commitment and treatment provisions
3 under chapters 125 and 229, and the juvenile delinquency
4 and child in need of assistance provisions under chapter
5 232. The members of the general assembly shall include two
6 senators, one appointed by the majority leader of the senate
7 and one appointed by the minority leader of the senate, and
8 two representatives, one appointed by the majority leader of
9 the house of representatives and one appointed by the minority
10 leader of the house of representatives.

11 b. The primary goal of the review is to facilitate and
12 enhance the interplay of the multidimensional aspects of the
13 systems, services, and supports for youth and the work of
14 the relevant stakeholders to ensure accessible and effectual
15 processes, procedures, protections, and services for affected
16 youth.

17 2. The department of health and human services shall report
18 the review's findings and recommendations to the governor and
19 the general assembly by October 1, 2025.

20 Sec. 39. REPEAL. 2024 Iowa Acts, chapter 1161, sections 97
21 and 98, are repealed.

22 DIVISION II

23 HOME AND COMMUNITY-BASED SERVICES — HABILITATION SERVICES
24 PROVIDED BY A RESIDENTIAL PROGRAM — EXCLUSION FROM CHILDREN'S
25 RESIDENTIAL FACILITY DEFINITION

26 Sec. 40. Section 237C.1, subsection 2, Code 2025, is amended
27 by adding the following new paragraph:

28 NEW PARAGRAPH. j. Care furnished to persons sixteen
29 years of age and older by a residential program to which the
30 department applies accreditation, certification, or standards
31 of review under the provisions of a federally approved medical
32 assistance home and community-based services waiver, or other
33 provision of the medical assistance program.

34 Sec. 41. ADMINISTRATIVE RULES. The department of health
35 and human services shall adopt rules pursuant to chapter

HF 984.1668 (2) 91

(amending this HF 984 to CONFORM to SF 474)

dg/ko

24/33

1 17A to require that the care furnished by an entity under
2 section 237C.1, subsection 2, paragraph "j", as enacted in
3 this division of this Act, shall be provided to persons under
4 eighteen years of age in settings separate from individuals
5 over the age of twenty-one.

6 DIVISION III

7 DIRECTOR OF JUVENILE COURT SERVICES — CHIEF JUVENILE COURT
8 OFFICERS

9 Sec. 42. Section 602.1101, Code 2025, is amended by adding
10 the following new subsection:

11 NEW SUBSECTION. 5A. *"Director of juvenile court services"*
12 means the same as defined in the Iowa court rules of juvenile
13 court services directed programs as prescribed by the supreme
14 court and includes the deputy director of juvenile court
15 services.

16 Sec. 43. Section 602.1217, Code 2025, is amended to read as
17 follows:

18 **602.1217 Chief juvenile court officer.**

19 1. ~~The chief judge of~~ director of juvenile court services
20 shall appoint a chief juvenile court officer for each judicial
21 district, after consultation with the judges of the judicial
22 ~~district, shall appoint a chief juvenile court officer~~ and may
23 remove ~~the~~ a chief juvenile court officer for cause.

24 2. The chief juvenile court officer is subject to the
25 immediate supervision and direction of the ~~chief judge of the~~
26 ~~judicial district~~ director of juvenile court services.

27 3. The chief juvenile court officer, in addition to
28 performing the duties of a juvenile court officer, shall
29 supervise juvenile court officers and administer juvenile court
30 services within the judicial district in a uniform manner,
31 under the supervision and direction of the director of juvenile
32 court services, in accordance with law and with the rules,
33 directives, and procedures of the judicial branch and the
34 judicial district.

35 4. The chief juvenile court officer shall assist the state

1 court administrator and the ~~district court administrator~~
2 director of juvenile court services in implementing the rules,
3 directives, and procedures of the judicial branch and the
4 judicial district.

5 5. A chief juvenile court officer shall have other duties
6 as prescribed by the supreme court or by the ~~chief judge of the~~
7 ~~judicial district~~ director of juvenile court services.

8 Sec. 44. Section 602.7201, subsections 2 and 3, Code 2025,
9 are amended to read as follows:

10 2. The juvenile court officers and other personnel
11 employed in juvenile court service offices are subject to
12 the supervision of the chief juvenile court officer. The
13 chief juvenile court officer is subject to the supervision and
14 direction of the director of juvenile court services.

15 3. The chief juvenile court officer may employ, shall
16 supervise, and may remove for cause with due process
17 secretarial, clerical, and other staff within juvenile court
18 service offices as authorized by the ~~chief judge~~ director of
19 juvenile court services.

20 Sec. 45. Section 602.7202, subsection 1, Code 2025, is
21 amended to read as follows:

22 1. Subject to the approval of the ~~chief judge of the~~
23 ~~judicial district~~ director of juvenile court services, the
24 chief juvenile court officer shall appoint juvenile court
25 officers to serve the juvenile court. Juvenile court officers
26 may be required to serve in two or more counties within the
27 judicial district.

28 DIVISION IV

29 HAWKI ELIGIBILITY — PUBLIC INSTITUTION INMATES

30 Sec. 46. Section 514I.8, subsection 2, paragraph g, Code
31 2025, is amended to read as follows:

32 ~~g. Is not an inmate of a public institution or a patient in~~
33 ~~an institution for mental diseases.~~

34 Sec. 47. NEW SECTION. 514I.8B Inmates of public
35 institutions — suspension of medical assistance.

1 1. Following the first thirty days of commitment, the
2 department shall suspend, but not terminate, the eligibility of
3 an eligible child who is an inmate of a public institution as
4 defined in 42 C.F.R. §435.1010, who is enrolled in the medical
5 assistance program under this chapter at the time of commitment
6 to the public institution, and who remains eligible for medical
7 assistance under this chapter except for the eligible child's
8 institutional status, during the entire period of the eligible
9 child's commitment to the public institution.

10 2. To the extent applicable, the public institution and the
11 department shall comply with the reporting requirements and the
12 expediting of the restoration of an eligible child's medical
13 assistance benefits under this chapter upon the eligible
14 child's discharge, consistent with section 249A.38.

15 3. The department shall adopt rules pursuant to chapter 17A
16 to administer this section.

17 DIVISION V

18 CORRECTIVE CHANGES

19 Sec. 48. Section 125.13, subsection 2, paragraphs a, i, and
20 j, Code 2025, are amended to read as follows:

21 a. A hospital providing care or treatment to persons with
22 a substance use disorder licensed under [chapter 135B](#) which is
23 accredited by the joint commission ~~on the accreditation of~~
24 ~~health care organizations~~, the commission on accreditation
25 of rehabilitation facilities, the American osteopathic
26 association, or another recognized organization approved by
27 the department. All survey reports from the accrediting or
28 licensing body must be sent to the department.

29 i. A substance use disorder treatment program not funded
30 by the department which is accredited or licensed by the joint
31 commission ~~on the accreditation of health care organizations~~,
32 the commission on the accreditation of rehabilitation
33 facilities, the American osteopathic association, or another
34 recognized organization approved by the department. All survey
35 reports from the accrediting or licensing body must be sent to

HF 984.1668 (2) 91

(amending this HF 984 to CONFORM to SF 474)

1 the department.

2 *j.* A hospital substance use disorder treatment program
3 that is accredited or licensed by the joint commission ~~on the~~
4 ~~accreditation of health care organizations~~, the commission on
5 the accreditation of rehabilitation facilities, the American
6 osteopathic association, or another recognized organization
7 approved by the department. All survey reports for the
8 hospital substance use disorder treatment program from the
9 accrediting or licensing body shall be sent to the department.

10 Sec. 49. Section 125.43A, Code 2025, is amended to read as
11 follows:

12 **125.43A Prescreening — exception.**

13 Except in cases of medical emergency or court-ordered
14 admissions, a person shall be admitted to a state mental
15 health institute for treatment of a substance use disorder
16 only after a preliminary intake and assessment by a
17 department-licensed treatment facility or a hospital providing
18 care or treatment for persons with a substance use disorder
19 licensed under [chapter 135B](#) and accredited by the joint
20 ~~commission on the accreditation of health care organizations~~,
21 the commission on accreditation of rehabilitation facilities,
22 the American osteopathic association, or another recognized
23 organization approved by the department, or by a designee of
24 a department-licensed treatment facility or a hospital other
25 than a state mental health institute, which confirms that the
26 admission is appropriate to the person's substance use disorder
27 service needs. A county board of supervisors may seek an
28 admission of a patient to a state mental health institute who
29 has not been confirmed for appropriate admission and the county
30 shall be responsible for one hundred percent of the cost of
31 treatment and services of the patient.

32 Sec. 50. Section 135B.12, Code 2025, is amended to read as
33 follows:

34 **135B.12 Confidentiality.**

35 The department's final findings or the final survey findings

HF 984.1668 (2) 91

(amending this HF 984 to CONFORM to SF 474)

dg/ko

28/33

1 of the joint commission ~~on the accreditation of health care~~
2 ~~organizations~~ or the American osteopathic association with
3 respect to compliance by a hospital or rural emergency hospital
4 with requirements for licensing or accreditation shall be made
5 available to the public in a readily available form and place.
6 Other information relating to a hospital or rural emergency
7 hospital obtained by the department which does not constitute
8 the department's findings from an inspection of the hospital
9 or rural emergency hospital or the final survey findings of
10 the joint commission ~~on the accreditation of health care~~
11 ~~organizations~~ or the American osteopathic association shall
12 not be made available to the public, except in proceedings
13 involving the denial, suspension, or revocation of a license
14 under [this chapter](#). The name of a person who files a complaint
15 with the department shall remain confidential and shall not
16 be subject to discovery, subpoena, or other means of legal
17 compulsion for its release to a person other than department
18 employees or agents involved in the investigation of the
19 complaint.

20 Sec. 51. Section 135B.20, subsection 4, Code 2025, is
21 amended to read as follows:

22 4. "*Joint conference committee*" shall mean the joint
23 conference committee as required by the joint commission ~~on~~
24 ~~accreditation of health care organizations~~ or, in a hospital
25 having no such committee, a similar committee, an equal number
26 of which shall be members of the medical staff selected by the
27 staff and an equal number of which shall be selected by the
28 governing board of the hospital.

29 Sec. 52. Section 135C.2, subsection 7, Code 2025, is amended
30 to read as follows:

31 7. The rules adopted by the department regarding nursing
32 facilities shall provide that a nursing facility may choose
33 to be inspected either by the department or by the joint
34 commission ~~on accreditation of health care organizations~~.
35 The rules regarding acceptance of inspection by the joint

1 ~~commission on accreditation of health care organizations~~ shall
2 include recognition, in lieu of inspection by the department,
3 of comparable inspections and inspection findings of the joint
4 ~~commission on accreditation of health care organizations~~,
5 if the department is provided with copies of all requested
6 materials relating to the inspection process.

7 Sec. 53. Section 135C.6, subsection 10, Code 2025, is
8 amended to read as follows:

9 10. Notwithstanding [section 135C.9](#), nursing facilities
10 which are accredited by the joint ~~commission on accreditation~~
11 ~~of health care organizations~~ shall be licensed without
12 inspection by the department, if the nursing facility has
13 chosen to be inspected by the joint ~~commission on accreditation~~
14 ~~of health care organizations~~ in lieu of inspection by the
15 department.

16 Sec. 54. Section 135J.2, subsection 2, Code 2025, is amended
17 to read as follows:

18 2. The hospice program shall meet the criteria pursuant to
19 section 135J.3 before a license is issued. The department is
20 responsible to provide the necessary personnel to inspect the
21 hospice program, the home care and inpatient care provided and
22 the hospital or facility used by the hospice to determine if
23 the hospice complies with necessary standards before a license
24 is issued. Hospices that are certified as Medicare hospice
25 providers by the department, or are accredited as hospices
26 by the joint ~~commission on the accreditation of health care~~
27 ~~organizations~~, shall be licensed without inspection by the
28 department.

29 Sec. 55. Section 144F.5, subsection 1, Code 2025, is amended
30 to read as follows:

31 1. The standards for accreditation adopted by the joint
32 ~~commission on the accreditation of health care organizations~~
33 or any other nationally recognized hospital accreditation
34 organization.

35 Sec. 56. Section 155A.13, subsection 4, paragraph a,

HF 984.1668 (2) 91

(amending this HF 984 to CONFORM to SF 474)

dg/ko

30/33

1 subparagraph (4), Code 2025, is amended to read as follows:

2 (4) Give recognition to the standards of the joint
3 ~~commission on the accreditation of health care organizations~~
4 and the American osteopathic association, and to the conditions
5 of participation under Medicare.

6 Sec. 57. Section 232.2, subsection 4, paragraph i, Code
7 2025, is amended to read as follows:

8 i. If reasonable efforts to place a child for adoption or
9 with a guardian are made concurrently with reasonable efforts
10 as defined in ~~section 232.102~~ 232.102A, the concurrent goals
11 and timelines may be identified. Concurrent case permanency
12 plan goals for reunification, and for adoption or for other
13 permanent out-of-home placement of a child shall not be
14 considered inconsistent in that the goals reflect divergent
15 possible outcomes for a child in an out-of-home placement.

16 Sec. 58. Section 232.36, subsection 3, paragraph b,
17 subparagraph (3), Code 2025, is amended to read as follows:

18 (3) ~~Legal custodian~~ Custodian of the child.

19 Sec. 59. Section 232.37, subsection 2, Code 2025, is amended
20 to read as follows:

21 2. Notice of the pendency of the case shall be served upon
22 the known parents, guardians, or ~~legal~~ custodians of a child
23 if these persons are not summoned to appear as provided in
24 subsection 1. Notice shall also be served upon the child and
25 upon the child's guardian ad litem, if any. The notice shall
26 attach a copy of the petition and shall give notification of
27 the right to counsel provided for in section 232.11.

28 Sec. 60. Section 232.101A, subsection 1, paragraph c, Code
29 2025, is amended to read as follows:

30 c. The parent of the child does not appear at the
31 dispositional hearing, or the parent appears at the
32 dispositional hearing, does not object to the transfer of
33 guardianship, and agrees to waive the requirement for making
34 reasonable efforts as defined in ~~section 232.102~~ 232.102A.

35 Sec. 61. Section 232.102A, subsection 3, Code 2025, is

1 amended to read as follows:

2 3. The performance of reasonable efforts to place a child
3 for adoption or with a guardian may be made concurrently with
4 making reasonable efforts ~~as defined in this section.~~

5 Sec. 62. Section 232B.5, subsection 19, unnumbered
6 paragraph 1, Code 2025, is amended to read as follows:

7 A party seeking an involuntary foster care placement of
8 or termination of parental rights over an Indian child shall
9 provide evidence to the court that active efforts have been
10 made to provide remedial services and rehabilitative programs
11 designed to prevent the breakup of the Indian family and that
12 these efforts have proved unsuccessful. The court shall not
13 order the placement or termination, unless the evidence of
14 active efforts shows there has been a vigorous and concerted
15 level of casework beyond the level that typically constitutes
16 reasonable efforts as defined in sections 232.57 and ~~232.102~~
17 232.102A. Reasonable efforts shall not be construed to be
18 active efforts. The active efforts must be made in a manner
19 that takes into account the prevailing social and cultural
20 values, conditions, and way of life of the Indian child's
21 tribe. Active efforts shall utilize the available resources
22 of the Indian child's extended family, tribe, tribal and
23 other Indian social service agencies, and individual Indian
24 caregivers. Active efforts shall include but are not limited
25 to all of the following:

26 Sec. 63. Section 233.2, subsection 5, Code 2025, is amended
27 to read as follows:

28 5. Reasonable efforts, as defined in section ~~232.102~~
29 232.102A, that are made in regard to the newborn infant shall
30 be limited to the efforts made in a timely manner to finalize a
31 permanency plan for the newborn infant.

32 Sec. 64. Section 237.3, subsection 7, Code 2025, is amended
33 to read as follows:

34 7. If an agency is accredited by the joint commission ~~on~~
35 ~~the accreditation of health care organizations~~ under the joint

1 commission's consolidated standards for residential settings
2 or by the council on accreditation ~~of services for families~~
3 ~~and children~~, the department shall modify facility licensure
4 standards applied to the agency in order to avoid duplicating
5 standards applied through accreditation.>

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